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State v. Worsham

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Court	Florida District Court of Appeals
Writing for the Court	Gross, J.
Citation	State v. Worsham, 227 So.3d 602 (Fla. App. 2017)
Decision Date	29 March 2017
Docket Number	No. 4D15-2733.,4D15-2733.
Parties	STATE of Florida, Appellant, v. Charles Wiley WORSHAM, Jr., Appellee.

227 So.3d 602

**STATE of Florida, Appellant,
v.Charles Wiley WORSHAM, Jr., Appellee.**

No. 4D15-2733.

District Court of Appeal of Florida, Fourth District.

[March 29, 2017]

Pamela Jo Bondi, Attorney General, Tallahassee, and Mitchell A. Egber, Assistant Attorney General, West Palm Beach, for appellant.

Jack A. Fleischman of Fleischman & Fleischman, P.A., West Palm Beach, for appellee.

Gross, J.

The state challenges an order granting appellee Charles Worsham's motion to suppress. Without a warrant, the police downloaded data from the "event data recorder" or "black box" located in Worsham's impounded vehicle. We affirm, concluding there is a reasonable expectation of privacy in the information retained by an event data recorder and downloading that information without a warrant from an impounded car in the absence of exigent circumstances violated the Fourth Amendment.

Worsham was the driver of a vehicle involved in a high speed accident that killed his passenger. The vehicle was impounded. Twelve days after the crash, on October 18, 2013, law enforcement downloaded the information retained on the vehicle's event data recorder. The police did not apply for a warrant until October 22, 2013. The warrant application was denied because the desired search had already occurred.

Worsham was later arrested and charged with DUI manslaughter and vehicular homicide. He moved to suppress the downloaded information, arguing the police could not access this data without first obtaining his consent or a search warrant. The state defended the search on the sole ground that Worsham had no privacy interest in the downloaded information, so that no Fourth Amendment search occurred.¹ The trial court granted Worsham's motion.

"A motion to suppress evidence generally involves a mixed question of fact and law. The trial court's factual determinations will not be disturbed if they are supported by competent substantial evidence, while the constitutional issues are reviewed de novo." *State v. K.C.* , 207 So.3d 951, 953 (Fla. 4th DCA 2016) (<https://case-law.vlex.com/vid/state-v-k-c-887191064>) (internal citation omitted). An appellate court is bound by the trial court's findings of fact unless they are clearly erroneous. *Id.* (<https://case-law.vlex.com/vid/state-v-k-c-887191064>) The burden is on the defendant to show the search was invalid, "[h]owever, a warrantless search constitutes a prima facie showing which shifts to the State the burden of showing the search's legality." *Id.* (<https://case-law.vlex.com/vid/state-v-k-c-887191064>) (internal citation omitted).

In Florida, citizens are guaranteed the right to be free from unreasonable searches and seizures by the Fourth Amendment to the United States Constitution and section 12 of Florida's Declaration of Rights. *Smallwood v. State* , 113 So.3d 724, 730 (Fla. 2013) (<https://case-law.vlex.com/vid/smallwood-v-state-no-888382282>). "The most basic constitutional rule" in the area of Fourth Amendment searches

is that "*searches conducted outside the judicial process, without prior approval by judge or magistrate, are per se unreasonable under the Fourth Amendment—subject only to a few specifically established and well-delineated exceptions.*" The exceptions are "jealously and carefully drawn," and there must be "a showing by those who seek exemption ... that the exigencies of the situation made that course imperative." "[T]he burden is on those seeking the exemption to show the need for it."

Id. at 729 (<https://case-law.vlex.com/vid/smallwood-v-state-no-888382282>) (quoting *Coolidge v. New Hampshire* , 403 U.S. 443, 454–55, 91 S.Ct. 2022, 29 L.Ed.2d 564 (1971) (<https://case-law.vlex.com/vid/coolidge-v-new-hampshire-892503462>)).

"A Fourth Amendment search occurs when the government violates a subjective expectation of privacy that society recognizes as reasonable." *State v. Lampley* , 817 So.2d 989, 990 (Fla. 4th DCA 2002) (<https://case-law.vlex.com/vid/state-v-lampley-no-891655025>) (quoting *Kyllo v. United States* , 533 U.S. 27, 33, 121 S.Ct. 2038, 150 L.Ed.2d

94 (2001) (<https://case-law.vlex.com/vid/kyllo-v-u-s-891680255>). This principle has been applied "to hold that a Fourth Amendment search does *not* occur ... unless 'the individual manifested a subjective expectation of privacy in the object of the challenged search,' and 'society [is] willing to recognize that expectation as reasonable.'" *Lamley* , 817 So.2d at 990–91 (<https://case-law.vlex.com/vid/state-v-lamley-no-891655025>) (quoting *Kyllo* , 533 U.S. at 33, 121 S.Ct. 2038 (<https://case-law.vlex.com/vid/kyllo-v-u-s-891680255>)).

Katz v. United States explained "the Fourth Amendment protects people, not places," so "[w]hat a person knowingly exposes to the public, even in his own home or office, is not a subject of Fourth Amendment protection." 389 U.S. 347, 351, 88 S.Ct. 507, 19 L.Ed.2d 576 (1967). One example is a car's exterior, which "is thrust into the public eye, and thus to examine it does not constitute a 'search.'" *New York v. Class* , 475 U.S. 106, 114, 106 S.Ct. 960, 89 L.Ed.2d 81 (1986) (<https://case-law.vlex.com/vid/new-york-v-class-892456383>) ; *see also Cardwell v. Lewis* , 417 U.S. 583, 592, 94 S.Ct. 2464, 41 L.Ed.2d 325 (1974) (<https://case-law.vlex.com/vid/41-325-cardwell-v-884707537>) (permitting warrantless search of an automobile's exterior).

Nevertheless, information someone seeks to "preserve as private," even where that information is accessible to the public, "may be constitutionally protected." *Katz* , 389 U.S. at 351, 88 S.Ct. 507. This is why "a car's interior as a whole is ... subject to Fourth Amendment protection from unreasonable intrusions by the police." *Class* , 475 U.S. at 114–15, 106 S.Ct. 960 (<https://case-law.vlex.com/vid/new-york-v-class-892456383>) ; *see also United States v. Ortiz* , 422 U.S. 891, 896, 95 S.Ct. 2585, 45 L.Ed.2d 623 (1975) (<https://case-law.vlex.com/vid/45-623-united-states-891165596>) ("A search, even of an automobile, is a substantial invasion of privacy.").

A car's black box is analogous to other electronic storage devices for which courts have recognized a reasonable expectation of privacy. Modern technology facilitates the storage of large quantities of information on small, portable devices. The emerging trend is to require a warrant to search these devices. *See Riley v. California* , --- U.S. ---, 134 S.Ct. 2473, 189 L.Ed.2d 430 (2014) (<https://case-law.vlex.com/vid/riley-v-california-13132-892080344>) (requiring warrant to search cell phone seized incident to arrest); *Smallwood* , 113 So.3d 724 (<https://case-law.vlex.com/vid/smallwood-v-state-no-888382282>) (requiring warrant to search cell phone in search incident to arrest); *State v. K.C.* , 207 So.3d 951 (<https://case-law.vlex.com/vid/state-v-k-c-887191064>) (requiring warrant to search an "abandoned" but locked cell phone).

Noting that cell phones can access or contain "[t]he most private and secret personal information," *Smallwood* , 113 So.3d at 732 (<https://case-law.vlex.com/vid/smallwood-v-state-no-888382282>), the Florida Supreme Court has distinguished these computer-like electronic storage devices from other inanimate objects:

[A]nalogizing computers to other physical objects when applying Fourth Amendment law is not an exact fit because computers hold so much personal and sensitive information touching on many private aspects of life.... [T]here is a far greater potential for the "inter- mingling" of documents and a consequent invasion of privacy when police execute a search for evidence on a computer.

Id. (<https://case-law.vlex.com/vid/smallwood-v-state-no-888382282>) (quoting *United States v. Lucas* , 640 F.3d 168, 178 (6th Cir. 2011) (<https://case-law.vlex.com/vid/u-s-v-lucas-885114092>)). Because of the "very personal and vast nature of the information" they contain, cell phones are "materially distinguishable from the static, limited-

capacity cigarette packet in *Robinson* (<https://case-law.vlex.com/vid/united-states-v-robinson-892969227>) .² *Smallwood* , 113 So.3d at 732 (<https://case-law.vlex.com/vid/smallwood-v-state-no-888382282>). "[T]he search of a static, non-interactive container, cannot be deemed analogous to the search of a modern electronic device cell phone." *Id.* (<https://case-law.vlex.com/vid/smallwood-v-state-no-888382282>) The *Smallwood* (<https://case-law.vlex.com/vid/smallwood-v-state-no-888382282>) court made clear that the opinion was "narrowly limited to the legal question and facts with which [it] was presented." *Id.* at 741 (<https://case-law.vlex.com/vid/smallwood-v-state-no-888382282>). Nonetheless, the court reiterated its desire to protect Fourth Amendment precedent "by ensuring that the exceptions to the warrant requirement remain 'jealously and carefully drawn.'" *Id.* at 740 (<https://case-law.vlex.com/vid/smallwood-v-state-no-888382282>).

The United States Supreme Court drew a similar distinction between a cell phone and other tangible objects in *Riley v. California* (<https://case-law.vlex.com/vid/riley-v-california-13132-892080344>) . The Court held that the search incident to arrest exception did not apply because neither rationale-the interest in protecting officer safety or preventing destruction of evidence-justified the warrantless search of cell phone data. *Riley* , 134 S.Ct. at 2486-88 (<https://case-law.vlex.com/vid/riley-v-california-13132-892080344>). "Cell phones differ in both a quantitative and a qualitative sense from other objects that might be kept on an arrestee's person. The term 'cell phone' is itself misleading shorthand; many of these devices are in fact minicomputers" *Id.* at 2489 (<https://case-law.vlex.com/vid/riley-v-california-13132-892080344>).

Searches of these "minicomputers," with their "immense storage capacity," are far more intrusive than searches prior to the "digital age," which were "limited by physical realities and tended as a general matter to constitute only a narrow intrusion on privacy." *Id.* (<https://case-law.vlex.com/vid/riley-v-california-13132-892080344>) The capacity of these devices "allows even just one type of information to convey far more than previously possible." *Id.* (<https://case-law.vlex.com/vid/riley-v-california-13132-892080344>) The Court concluded, "[t]he fact that technology now allows an individual to carry such information in his hand does not make the information any less worthy of the protection for which the Founders fought." *Id.* at 2495 (<https://case-law.vlex.com/vid/riley-v-california-13132-892080344>).

It is an issue of first impression in Florida whether a warrant is required to search an impounded vehicle's electronic data recorder or black box.³ An event data recorder is a device installed in a vehicle to record "crash data" or technical vehicle and occupant information for a period of time before, during, and after a crash. NHTSA, Event Data Recorders, 49 C.F.R. § 563.5 (2015). Approximately 96% of cars manufactured since 2013 are equipped with event data recorders. *Black box 101: Understanding event data recorders* , CONSUMER REPORTS , <http://www.consumerreports.org/cro/2012/10/black-box-101-understanding-event-data-recorders/index.htm>, (published Jan. 2014).

Most of these devices are programmed either to activate during an event or record information in a continuous loop, writing over data again and again until the vehicle is in a collision. Michelle V. Rafter, *Decoding What's in Your Car's Black Box*, EDMUNDS , <https://www.edmunds.com/cartechnology/car-black-box-recorders->

capture-crash-data.html (updated July 22, 2014). However, if triggered, the device can record multiple events. 49 C.F.R. § 563.9 (<https://us.vlex.com/vid/data-capture-943467235>).

The National Highway Traffic Safety Administration has standardized the minimum requirements for electronic data recorders, mandating that the devices record 15 specific data inputs, including braking, stability control engagement, ignition cycle, engine rpm, steering, and the severity and duration of a crash. 49 C.F.R. § 563.7 (<https://us.vlex.com/vid/data-elements-944396543>). Along with these required data inputs, the devices may record...

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Mobley v. State (<https://case-law.vlex.com/vid/mobley-v-state-a18a0500-899575805>)

United States Georgia Court of Appeals June 27, 2018

...a divided opinion) that a search warrant was required to access ACM data in an impounded vehicle. State v. Worsham , 227 So.3d 602, 605, 608, 42 Fla. L. Weekly D 711 (Fla. 4th DCA 2017) (certiorari denied in Florida v. Worsham , — U.S. —, 138 S.Ct. 264, 199 L.Ed.2d 125 (2017)). The Wo.....

Jones v. State (<https://case-law.vlex.com/vid/jones-v-state-case-885402722>)

United States Florida District Court of Appeals September 20, 2019

...at the suppression hearing to show that the cocaine and firearm found in Jones's car were seized lawfully. See State v. Worsham , 227 So. 3d 602, 603 (Fla. 4th DCA 2017) ("[A] warrantless search constitutes a prima facie showing which shifts to the State the burden of showing the search's l.....

State v. Pierre (<https://case-law.vlex.com/vid/state-v-pierre-case-887452897>)

United States Florida District Court of Appeals May 8, 2020

...(EDR) located inside the defendant's vehicle. In granting the suppression motion, the trial court relied on State v. Worsham, 227 So. 3d 602, 603 (Fla. 4th DCA 2017) (holding that "there is a reasonable expectation of privacy in the information retained by an event data recorder").On appeal.....

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